

26STLC00627 26STLC00627

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-22

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Case Number: 26STLC00627 Hearing Date: July 22, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Tsang Han Wang's

Common Law Motion for Judgment on the Pleadings is denied.

Analysis:

On January 29, 2026, Plaintiff

Tsang Han Wang ("Plaintiff") filed the instant action against Defendant Malwarebytes, Inc.

("Defendant"). Defendant filed its Answer on March 9, 2026. On March 18, 2026,

Plaintiff filed (1) the Application for Leave to File Memorandum of Points and

Authorities in Excess of Page Limit; (2) the Demurrer to Answer; and (3) the

Motion for Judgment on the Pleadings. On April 22, 2026, the Court sustained

the Demurrer to the Answer with leave to amend as to the fifth through ninth

and twenty-second affirmative defenses, and otherwise overruled the Demurrer.

(Minute Order, 04/22/26.) Defendant filed its Amended Answer on May 12, 2026.

On May 14, 2026, Defendant filed a Motion to Require

Plaintiff to Furnish Security. Defendant filed its opposition to the instant

Motion for Judgment on the Pleadings on June 5, 2026, to which Plaintiff filed

an objection and Notice of Violation of Stay on June 8, 2026. At the initial

hearing on the Motion, the Court continued the matter on account of the stay

imposed by Code of Civil Procedure sections 391.1 and 391.6. (Minute Order,

06/22/26.) The Court denied Defendant's Motion to Require Plaintiff to Furnish

Security on July 7, 2026, without prejudice. (Minute Order, 07/07/26.)

Discussion

In light of the Court's ruling denying Defendant's Motion to Require Plaintiff to Furnish Security on July 7, 2026, the stay pursuant to Code of Civil Procedure section 391.6 is lifted.

Amended Answer filed on May 12, 2026

The first issue to address is whether Plaintiff's Motion is moot on account of Defendant filing an Amended Answer after the Motion was filed. IN JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, the Court of Appeals ruled that:

“ ‘ [A]n amendatory pleading supersedes the original one, which ceases to perform any function as a pleading. ’ ’ ” (Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884, 92 Cal.Rptr. 162, 479 P.2d 362.) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment. [Citation.] [¶] Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.]” (State Compensation Ins. Fund v. Superior Court (2010) 184 Cal.App.4th 1124, 1130–1131, 109 Cal.Rptr.3d 88.)

(JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477.) With the exception of substantively identical pleadings, the Court of Appeals holds that this rule renders demurrers to the original pleading moot. (Ibid; Delon Hampton & Associates, Chartered v. Superior Court (2014) 227 Cal.App.4th 250, 253 n. 5.)

Here, Plaintiff moves for judgment on the pleadings on account of Defendant's 30th and 31st affirmative defenses in the Answer, which are for Emotional Distress Caused by Other Factors and Emotional Distress Damages Unconstitutional, respectively. (Notice of Motion, p. 1:17-24.) Plaintiff also moves on the basis that Defendant is barred from raising any defense upon its own unlawful conduct, as demonstrated by the allegations in the Complaint. (Id. at p. 25-28.) The Amended Answer asserts the same affirmative defenses as the 29th and 30th affirmative defenses and is substantively identical to the Answer in this respect.

Given that the standard for ruling on a motion for judgment on the pleading is essentially the same as ruling on a demurrer, the Court finds the exception articulated in Delon Hampton applies and it will rule on the Motion as if directed to Defendant's Amended Answer. (See *Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322, citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

The Court declines to strike Defendant's opposition to the Motion, as Plaintiff asks. The opposition was filed during the stay of the action, however, hearing on the Motion was continued for sufficient time for Plaintiff to file a reply, should he so choose. The minute order setting the continued hearing addressed the issue, stating, "Defendant has already filed its opposition. Plaintiff may file a reply in support of the Motion consistent with Code of Civil Procedure, §1005(b)." (Minute Order, 06/24/26.)

Legal Standard

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322, citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) Where the moving party is the plaintiff, judgment on the pleadings may be granted on the basis that "that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (Code Civ. Proc., § 438, subd. (c)(1)(A).) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (*Id.*) The motion may not be supported by extrinsic evidence. (*Barker v. Hull* (1987) 191 Cal.App.3d 221, 236.)

While a statutory motion for

judgment on the pleadings brought pursuant to Code of Civil Procedure section 438, et seq. must be accompanied by a meet and confer declaration, there is no such requirement for a motion for judgment on the pleadings brought pursuant to the common law.

Doctrine of Confession-and-Avoidance

Plaintiff's Motion begins with the erroneous premise that the Court must accept as true all the well-pleaded allegations of the Complaint and all the affirmative assertions made by Defendant in its Answer. (Motion, p. 8:10-11.) No authority is cited for this proposition regarding the allegations in the Complaint and it is contrary to California law:

The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer. (Chadbourn, Grossman, Van Alstyne, Cal. Pleading, § 1334, pp. 490, 491; Miller & Lux, Inc., v. San Joaquin Light & Power Corp., 120 Cal.App. 589, 600, 8 P.2d 560.) This requirement, however, does not mean that the allegations of the complaint, if denied, are to be taken as true, the rule being that the demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer.

(South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 733, emphasis added.) Plaintiff's subsequent recitation of certain allegations in the Complaint as true for purposes of the instant Motion, therefore, is irrelevant.

Plaintiff argues that the language of the 30th and 31st affirmative defenses in the Answer (now the 29th and 30th affirmative defenses in the Amended Answer) confesses the truth of the allegations in the Complaint, namely, that Plaintiff suffered emotional distress. By the plain language of both defenses, however, Defendant has not admitted this fact. The 29th defense states in relevant part: "assuming arguendo that Plaintiff suffered any emotional distress (which Defendant denies), such emotional distress was proximately caused by factors other than Plaintiff's work for Defendant, the actions of Defendant or anyone acting on its behalf or in its employ, or any of these." (Amended Answer, filed 05/12/26, ¶129). Likewise, the next defense alleges "that Plaintiff is not entitled to

recover emotional distress damages because California's system of emotional distress damages is unconstitutional. (Id. at ¶30.) Neither defense "confesses" facts upon which the Court can find Defendant liable for Plaintiff's injuries as they both "avoid" liability based on additional facts. In fact, Plaintiff's confession-and-avoidance argument would always render a defendant liable on the alleged defense if it only looked to the "confession" portion of the defense.

Therefore, the 29th and 30th affirmative defenses are not grounds to grant Plaintiff judgment on the pleadings.

Doctrine of Unclean Hands

Plaintiff also moves for judgment on the pleadings by arguing that Defendant is barred from raising any defense based upon its own unlawful conduct, as alleged by the facts in the Complaint. As explained above, the Court does not take the allegations in the Complaint as true on the instant Motion. Instead, it eliminates all the facts alleged in the Complaint that were denied by the Amended Answer. The Amended Answer includes a general denial of each and every allegation contained in the Complaint. (Amended Answer, filed 05/12/26, p. 2:4-7.) The unclean hands doctrine, therefore, does not support a judgment on the pleadings against Defendant.

Conclusion

Plaintiff Tsang Han Wang's Common Law Motion for Judgment on the Pleadings is denied.

Judicial

Assistant to give notice.